

Amendment No. 2 to HB0793

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 836

House Bill No. 793*

by deleting all language after the caption and substituting:

WHEREAS, in *Plyler v. Doe*, 457 U.S. 202 (1982), the United States Supreme Court held that illegal alien children living in the United States could not be excluded from a free public education based upon their immigration status; and

WHEREAS, the Tennessee General Assembly finds that both the volume of illegal immigration, and its commensurate drain on State resources, as well as federal immigration policy have materially changed since 1982, when *Plyler* was decided; and

WHEREAS, the Tennessee General Assembly finds that data from the U.S. Immigration and Naturalization Service, Office of Policy and Planning, *Estimates of the Unauthorized Immigrant Population Residing in the United States: 1990 to 2000*, shows the "many States . . . had relatively few unauthorized residents" when *Plyler* was decided, but have subsequently "experienced rapid growth of the unauthorized population"; and

WHEREAS, the Tennessee General Assembly finds that data from the U.S. Department of Homeland Security shows that the number of illegal aliens present in the United States has nearly quadrupled in the past thirty years. The data estimates 10,990,000 were present in 2022. This number represents a material change in the illegal immigration environment that existed when *Plyler* was decided; and

WHEREAS, Tennessee is best suited to determine the educational needs of its citizenry; in fact, unlike the United States Constitution, the Tennessee Constitution in Article XI, Section 12 requires that the General Assembly "provide for the maintenance, support and eligibility standards of a system of free public schools"; and

WHEREAS, the Tennessee General Assembly finds it appropriate and necessary for this State to collect data from the publicly funded schools and school systems to ascertain the full scope and effect of illegal immigration on the public schools of this State; now, therefore, BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 30, is amended by adding the following as a new section:

(a) Notwithstanding another law to the contrary, beginning with the 2026-2027 school year, each LEA and public charter school shall require all school-age students enrolled in the LEA or public charter school, or who seek to register or enroll in the LEA or public charter school, to produce documentation to establish that the student:

- (1) Is a citizen of the United States;
- (2) Is in the process of obtaining United States citizenship;
- (3) Holds a valid legal immigration or visa status; or
- (4) Is subject to pending immigration proceedings in which a final order of removal has not been issued.

(b)

(1) Each LEA and public charter school shall, for the 2026-2027 school year and for each school year thereafter, report to the department of education the number of students who:

- (A) Enrolled in the LEA or public charter school;
- (B) Produced documentation sufficient to establish that the student meets one (1) of the criteria in subsection (a);
- (C) Failed or refused to produce documentation pursuant to subsection (a), including in the report the reason provided by the student or the student's parent for their failure or refusal to comply;
- (D) Produced documentation insufficient to establish that the student meets one (1) of the criteria in subsection (a), including in the

report a brief description of why the documentation was insufficient to establish the student's lawful presence in the United States; and

(E) Produced documentation establishing that the student meets one (1) of the criteria in subsection (a), including in the report a list of the types of forms or documents produced that were sufficient to establish the student's lawful presence in the United States.

(2) An LEA or public charter school shall not include in any report submitted pursuant to this subsection (b) any personally identifiable information for a student or a student's parent. Any personally identifiable information collected for purposes of this section must be aggregated into summary statistics before the information is reported in accordance with this subsection (b).

(3) The department of education shall compile the information received from each LEA and public charter school pursuant to subdivision (b)(1) and report the same to the department of finance and administration, the centralized immigration enforcement division within the department of safety, the governor, the speaker of the senate, and the speaker of the house of representatives no later than July 1, 2027, for the 2026-2027 school year. All subsequent reports must be submitted no later than July 1 for the immediately preceding school year.

(c) Notwithstanding another law to the contrary, an LEA or public school, including a public charter school, that enrolls a student who failed or refused to produce the documentation described in subsection (a), or who produced documentation insufficient to establish that the student meets one (1) of the criteria in subsection (a) is not implementing a sanctuary policy as that term is defined in § 7-68-102.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.